

[*59] *3. **Where no trust appears on the will and no fraud.** — If a testator, by his will, devise an estate, and the devisee, so far as appears on the face of the will, is intended to take the beneficial interest, and the testator leaves a declaration of trust not duly attested, and not communicated to the devisee and assented to by him in the testator's lifetime, the devisee is the party entitled both to the legal and beneficial interest: for the estate was well devised by the will, and the informal declaration of trust is not admissible in evidence (a).

531.] The law laid down by Jenkins, 3 Cent. Cas. 26, is founded on mistake, as from the report of the case in Fitzherb. Ab. Devise, 22, it appears that the beneficial interest was decreed to the heir, not, as Jenkins supposed, of the devisee, but of the testator.

In *Metham v. Devon*, 1 P. W. 529, a testator by his will directed his executors to pay 3000*l.* as he should by deed appoint, and subsequently by deed appointed the 3000*l.* to certain children, and the Court established the gift to the children on the ground that the deed referred to the will, and was part thereof, and in the nature of a codicil. It does not appear whether the deed had been proved with the will, but it might have been, as, though a deed in form, it was of a testamentary character. If the deed was not proved, or assumed to have been proved, it is difficult to find any principle upon which the case can be supported from the brief statement of it in the report.

In *Inchiquin v. French*, 1 Cox, 1, a testator devised all his real estate, charged with debts and legacies, in strict settlement, and gave a legacy of 20,000*l.* to Sir Wm. Wyndham; by a deed poll of even date with his will, the testator declared that the 20,000*l.* was given to Sir Wm. Wyndham upon trust for Lord Clare. "The deed poll," adds Mr. Cox, the reporter, "does not appear to have been proved as a testamentary paper;" and according to the same report, Lord Hardwicke decreed that the legacy of 20,000*l.*

given to Sir Wm. Wyndham, and by the *codicil* declared to be in trust for Lord Clare, was a subsisting legacy. It might be inferred from this statement, that Lord Hardwicke admitted the deed poll as a declaration of trust; but it will be observed that he calls it a *codicil*, and from the report of the same case in Ambler, p. 33, we learn the facts, viz., that Lord Clare was out of the jurisdiction, and Lord Hardwicke declined to entertain the question as to Lord Clare's right in his absence; but the counsel, for all parties, desiring his Lordship to determine whether, assuming the legacy to be valid, it was to be paid out of the real or personal estate, his Lordship held, that as the will contained a general charge of legacies and the gift by the *codicil*, though not attested according to the Statute of Frauds, was a legacy, it was raisable primarily out of the personal estate, and then out of the real estate. This was the only point determined by him.

The dictum of Lord Northington, in *Boson v. Statham*, 1 Eden. 514, is clearly not law; see *Adlington v. Cann*, 3 Atk. 151; *Muckleston v. Brown*, 6 Ves. 67; *Stickland v. Aldridge*, 9 Ves. 519; and see *Puleston v. Puleston*, Finch, 312.

(a) *Adlington v. Cann*, 3 Atk. 141; *Juniper v. Batchelor*, 19 L. T. N. S. 200; and see *Stickland v. Aldridge*, 9 Ves. 519; and the observations of Sir J. L. K. Bruce in *Briggs v. Penny*, 3 De G. & Sm. 547.